Contract review report

Document: cap-exception-supercap.docx
Playbook: Interaction acceptance liability-cap
AI status: NOT_REQUESTED
Contract review aid, not legal advice. Attorney review is required.

Source SHA256: fa425dc7467b8a035dce8da4994e3d4c3af6f6a44a907d6645ec491153abfa45

Limitation of liability

Issue ID: 96b343e1-00dc-4cc5-a5e0-28b02e4a8a4f

Rule ID: liability-cap

Severity: high

Clause category: Limitation of liability

Observed language: Each party’s aggregate liability will not exceed the Fees paid in the preceding twelve months.

Source anchor: b1; Paragraph 1; extracted offsets [0, 94)

Explanation: Related provisions qualify this clause. Review their combined effect before deciding whether the selected playbook position is met.

Related clauses and effect: cap-exception: A separate provision removes a named category from the base liability cap. The base fee formula does not describe all covered exposure. A separate limit for the same named category was also located. Check scope, conditions and precedence together; do not label the whole agreement uncapped.
b1; Paragraph 1; extracted offsets [0, 94): Each party’s aggregate liability will not exceed the Fees paid in the preceding twelve months.
b2; Paragraph 2; extracted offsets [96, 160): The liability cap does not apply to indemnification obligations.
b3; Paragraph 3; extracted offsets [162, 257): Indemnification liability is limited to two times the Fees paid in the preceding twelve months.

Preferred contract position: Express aggregate cap based on fees paid or payable in the preceding 12 months.

Suggested negotiating response: Request a revision that provides: Express aggregate cap based on fees paid or payable in the preceding 12 months.

Saved playbook alternatives and fallback: Playbook guidance only; not contract text or a verified legal standard. Alternatives: A specifically negotiated, documented allocation approved by counsel.
Fallback wording: None specified

Reviewer status: unresolved

Reviewer notes: (none)

Confidence or uncertainty: NEEDS_REVIEW

Analysis layer: deterministic

Rule checks

liability-cap: NEEDS_REVIEW {"explicit_fee_cap": true, "basis": "fees paid/payable", "period_months": 12, "scope_review_required": true, "interaction_count": 1}